

Nand Kishor v. State of U.P. & Ors.

Allahabad High Court · Division Bench · 15 April 2013 · Writ-C No. 20197 of 2013 · **Writ disposed; apply in prescribed form under cl. 4.4; consider within one month.**

HEADNOTE

A writ seeking electric supply, where no application in the prescribed form under clause 4.4 of the Electricity Supply Code, 2005 had been filed, was disposed of with a direction that if the petitioner files such an application, the licensee shall consider it in accordance with law within one month.

FACTUAL SUMMARY

Nand Kishor petitioned the Allahabad High Court for a direction to supply an electric connection. Counsel for the distribution licensee (respondents 2 and 3) submitted that an application for a new connection had to be made in the prescribed form under clause 4.4 of the U.P. Electricity Supply Code, 2005, and that no such application had been filed. Counsel for the petitioner and for the State were also heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

new connection — prescribed-form application

HOLDING

Where no application for a new electric connection has been made in the prescribed form under clause 4.4 of the Electricity Supply Code, 2005, the Court will not mandamus supply; it will direct that if the petitioner files such an application, the licensee shall consider it in accordance with law within one month. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO A NEW CONNECTION ON MERITS

No finding on occupancy, owner consent, indemnity bond, or other clause 4.4 conditions; relegated to a prescribed-form application. ¶ 1